

Babu Lal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 August 2022 · WRIT - C No. - 22210 of 2022 · **Writ disposed; relegated to clause 6.14 instalment representation**

HEADNOTE

A consumer seeking a writ direction to pay electricity dues in instalments has a remedy under Clause 6.14 of the U.P. Electricity Supply Code 2005. Without examining merits, the High Court will leave the consumer to a representation before the concerned officer, with a time-bound direction to consider that application in accordance with law.

FACTUAL SUMMARY

Babu Lal approached the Allahabad High Court in Writ-C No. 22210 of 2022 against the State of Uttar Pradesh and two others. The only relief he sought was a direction that the respondents permit him to pay outstanding electricity dues in instalments. Counsel for the petitioner and the standing counsel were heard. The Division Bench disposed of the petition on 11 August 2022 without deciding whether instalments were due as of right.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for payment of dues

HOLDING

The petitioner has a remedy under Clause 6.14 of the U.P. Electricity Supply Code 2005 to seek payment of dues in instalments. Without expressing any opinion on merits, the writ is disposed of with liberty to file a representation before respondent no. 3 under para 6.14; if made within three weeks with a certified copy of this order, respondent no. 3 shall consider it and take an appropriate decision in accordance with law within the next two weeks. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Writ seeking a direction to pay electricity dues in instalments was not decided on merits; the Court treated Clause 6.14 as the available remedy and directed a time-bound consideration of a representation before respondent no. 3. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED ON MERITS TO PAY THE DUES IN INSTALMENTS

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1